SIKKIM

GOVERNMENT GAZETTE

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GOVERNMENT OF SIKKIM
DEPARTMENT OF PERSONNEL, ADMINISTRATIVE REFORMS & TRAINING PUBLIC GRIEVANCES, CAREER OPTIONS & EMPLOYMENT SKILL DEVELOPMENT AND CHIEF MINISTER'S SELF EMPLOYMENT SCHEME GANGTOK-SIKKIM

No. 36/GEN/DOP **Dated: 11.8.2004.**

NOTIFICATION

WHEREAS the First National Judicial Pay Commission have recommended certain Allowances, Amenities and Advances payable to Judicial Officers and the Hon'ble Supreme Court of India having accepted most of the recommendations with some modifications vide its judgment/order passed in All India Judges Association Versus Union of India reported in (2002) 4 SCC 247;

NOW, THEREFORE, in exercise of the powers conferred by proviso to Article 309 of the Constitution of India, the Governor of Sikkim, in consultation with the High Court of Sikkim, hereby makes the following rules, namely :-

1. Short title and commencement :-

   (1) These rules may be called the Judicial Officers (Allowances, Amenities and Advances) Rules, 2004;

   (2) They shall be deem to have come into force on the 1st day of November, 1999.

2. Extent of application :-
   These rules shall be applicable to the members of Sikkim Superior Judicial Service and the Sikkim Judicial Service.

3. Dearness Allowance:-
   The same Dearness Allowance formula as being implemented to the Central Government employees from time to time shall apply to the Judicial Officers of the State.

4. Electricity and Water Charges :-
   50% of charges of electricity and water consumed by the Judicial Officer in his residential accommodation shall be reimbursed by the State Government subject to a maximum limit of Rs. 500/

and any amount in excess of the maximum limit shall be borne by the concerned Judicial Officer. The payment by reimbursement shall be made to the Judicial Officers on quarterly basis by the controlling authority, upon production of the receipts for having paid the bills.

5. Newspaper/Magazine :-

The Judicial Officer shall be entitled to News Paper/Magazine at the following scale:-

Level of Officer	Entitlement Newspaper	Magazine
Civil Judge-cum-Judicial Magistrate	One National and one Regional	One
Chief Judicial Magistrate	-do-	-do-
District Judge and equivalent	-do-	-do-

The Judicial Officer shall get the Newspaper-Magazine as per the above entitlement through his local hawker upon payment in the first instance and the Judicial Officer could claim reimbursement from the office after producing the original bill.

6. City Compensatory Allowance (CCA) :-

The City Compensatory Allowance (CCA) not being applicable to the State Government employees, the City Compensatory Allowance as and when adopted by the State Government shall be made applicable to a Judicial Officer at the same rate as will be payable to the State Government officials.

7. Robe Allowances :-

A lumpsum amount of Rs. *5000/-* shall be paid to every Judicial Officer once in five years as robe Allowance.

8. Conveyance Allowance :-

The Judicial Officers provided with Government Conveyance shall be entitled to 100 (hundred) liters of petrol/diesel per month.

9. Hill Allowance :-

SBCA (Sikkim Border Compensatory Allowance) being the corresponding allowance for the Hill Allowance in the State, SBCA shall be payable to Judicial Officers in lieu of Hill Allowance at the same rate as is applicable to a State Government official.

10. Medical Facilities :-

The Judicial Officers shall be entitled to Medicial benefits as are provided to be the Members of the State Legislatures subject to the following modifications :-

(1) The State Government shall notify the list of Hospitals, Dispensaries, Government and private, in each City/District Headquarters and places for medical treatment of Judicial Officers and members of their family.

(2) The Judicial Officers shall be entitled to claim expenses incurred by them for the medical attendance and the treatment obtained by them and their family members in such notified Hospital/Dispensaries. The expenses shall be inclusive of the charges for accommodation in the place where such treatment is taken.

(3) The Judicial Officers shall be entitled to reimbursement of the expenses incurred by them or for their family members for the medical attendance and treatment obtained by them in any place other than in a hospital or dispensary maintained by the State Government and other than the hospitals or dispensaries notified by the Government, to the same extent as they are entitled to under the rules for reimbursement of expenses incurred by them for medical

attendance and treatment obtained in the notified Hospital or Dispensary. Expenses shall be inclusive of charges for accommodation.

(4) There shall be no restriction on reimbursement except to the extent of in-patient room entitlement. Further, there shall be no any ceiling on reimbursement of expenditure on expensive treatment like kidney transplant, open heart surgery etc..

(5) The District Judge shall be the competent authority for passing the bill for reimbursement of medical attendance and expenses of Judicial Officers under him and in case of District Judges, the High Court shall be the sanctioning authority.

(6) All claims for reimbursement of the expenses incurred by Judicial Officers for themselves or for their family members shall be accompanied by an "Essentiality Certificate" issued by the Authorised Medical Attendant with the bills for reimbursement supported by the prescription and vouchers or cash memos.

(7) Judicial Officers shall be entitled to advances to meet the medical expenses for treatment upto 80% of the estimate and the balance shall be paid on due approval when it is produced.

(8) All Judicial Officer, both serving and retired, shall be paid Rs. 100/- per month as Medical Allowance on and above the facilities provided hereinabove.

11. Leave Travel Concession(LTC)/Home Travel Concession(HTC)

(1) The Leave Travel Concession shall be provided to all Judicial Officers once in a block of four years to any part of India.

(2) In order to claim Leave Travel Concession, one must have put in not less than 5 (five) years of continuous service.

(3) All Judicial Officers shall be provided Home Travel Concession once in two years.

(4) The entitlement for the journey would be according to the Rules as may be framed by the State Government.

(5) No cash payment in lieu of Leave Travel Concession shall be allowed. Carry forward of Leave Travel Concession is also not allowed beyond retirement.

(6) This entitlement shall not be allowed to a Judicial Officer within one year before retirement.

12. Special Pay :-
The Judicial Official shall be entitled to such special pay for administrative works outside the Court as may be determined by the High Court.

13. Concurrent Charge Allowance :-
The Concurrent Charge Allowance as may be determined by the High Court, shall be paid to the Judicial Officer when he is placed in charge of another Court continuously beyond the period of ten working days and if he performs appreciable judicial work of that Court. The Charge Allowance shall be paid to such Judicial Officer at 10% of the minimum of the time scale of the additional post held.

14. Encashment of leave and leave salary. :-

(i) The benefit of availing encashment of leave shall be extended to all Judicial Officers in the State without insisting on the availment of leave simultaneously.

(ii) The Judicial Officers shall be allowed to encash leave not exceeding one month in a block of two years.

(iii) The encashment of leave shall be tax-free.

15. Transfer Grant/Disturbance Allowance :-

The Judicial Officers shall be entitled for payment of Transfer Grant in accordance with the Government of India Rules for payment of Transfer Grants.

16. Housing, House Rent Allowance :-

(1) All Judicial Officers, irrespective of their cadre, shall be provided with Government quarters according to their entitlement. If adequate Government quarters are not available at a time, the Government shall requisition the proper houses and make available to the Judicial Officers.

(2) The Government shall collect by way of rent an amount not exceeding 12.5% of the basic pay of the occupant of such accommodation every month.

(3) All Judicial Officers are entitled to House Rent Allowance at the rate provided to the State Government servants in the State.

(4) Judicial Officers who occupy their own houses with the permission of the High Court are also entitled to House Rent Allowance at the same rate as provided to the State Government employees.

(5) The Government quarters/requisitioned house provided to Judicial Officer shall have separate space for 'Home Library' and the necessary books and the furniture of the Home Library shall be at the cost of the High Court which shall be administered and managed by the District Judge of the District.

(6) The Drawing Room of each such quarters/house shall be reasonably furnished with a sofa set, carpet, teapoy and one or two side tables and chairs at the cost of the State which shall be administered and managed by the District Judge of the District.

(7) The regular maintenance and repairs of Government quarters allotted to Judicial Officers shall be the obligatory duty of the Public Works Department.

(8) A certain percentage of sites/house, wherever they are available for allocation/allotment by the Housing Board/City Improvement/Development Authority shall be ear-marked for allotment to Judicial Officers.

17. Telephone Facilities :-

(1) Every Court shall be provided with a telephone with STD facilities.

(2) Every Judicial Officer shall be provided with a telephone at his resident with STD facilities except Civil Judge-cum-Chief Judicial Magistrate and Civil Judge-cum-Judicial Magistrate.

(3) The ceiling fixed by the State Govt. or the following, whichever is higher, shall be the limits of free calls to the different categories of officers :-

Sl. No.	Name of the Category	Admissible free calls for two month	
		Office	Residence
(i)	District Judge/Sessions Judge (with STD facility both in office & residence)	2,000/-	3,000/-
(ii)	Civil Judge-cum-Chief Judicial Magistrate (STD facility both in office and residence)	2,000/-	1,000/-
(iii)	Civil Judge-cum-Judicial Magistrate(without STD facility).	1,500/-	1,000/-

(4) The office shall bear the expenses of the installation and bi-monthly payment of the telephone bills upto the aforesaid ceiling. The excess calls, if any, shall be borned by the concerned Judicial Officer.

18. Advances :-

(1) All the Judicial Officers shall be entitled for construction of house/purchase of house at the limits prescribed by the Central Government for giving advances.

(2) A rebate of 1/2% in the interest on House Building Allowance as admissible in the case of Central Government employees for undergoing sterilization operation shall be allowed to the Judicial Officers.

(3) A liberal soft loan upto Rs. 2.5. Lakhs for Judicial Officers for purchase of Motor Vehicles on nominal interest and with easy installment for repayment shall be provided.

(4) Advance for purchase of Personal Computer by the Judicial Officers shall be given on the same scale and terms and conditions as allowed to Officers of Government of India.

(5) Other advances, if any, to the Judicial Officers in regard to matters not specifically covered herein shall be provided on the similar terms and conditions admissible to Central Government Officers.

19. Sumptuary Allowance :-

(1) All the Judicial Officers shall be allowed to draw the sumptuary allowance at the following rate :-

	Category of Judicial Officer	Rs. Per month
(i)	District Judge & equivalent	*1,000/-*
(ii)	Civil Judge-cum-Chief Judicial Magistrate	*750/-*
(iii)	Civil Judge-cum-Judicial Magistrate	*500/-*

(2) The Sumptuary Allowances shall be tax free.

19. Domestic Help Allowance:-

Every retired Judicial Officer shall be paid a cash payment of Rs. 1250.00 per month as "Domestic Help Allowance" upon furnishing a certificate every month that he has engaged a servant.

BY ORDER AND IN THE NAME OF GOVERNOR OF SIKKIM.

R. S. BASNET,
PRINCIPAL SECRETARY TO THE GOVERNMENT
DEPARTMENT OF PERSONNEL, ADMINISTRATIVE REFORMS,TRAINING, PUBLIC GRIEVANCES, CAREER OPTIONS & EMPLOYMENT SKILL DEVELOPMENT AND CHIEF MINISTER'S SELF EMPLOYMENT SCHEME